DevotedHealth

June 16, 2025

Dr. Mehmet Oz, Administrator
Centers for Medicare & Medicaid Services (CMS)
Attention: CMS-4201-P
P.O. Box 8013
Baltimore, MD 21244

Submitted via regulations.gov

Subject: Response to Request for Information (RFI) on Health Technology Ecosystem Considerations for Medicare Beneficiaries (Issued May 16, 2025)

Dear Administrator Oz and Staff of the Centers for Medicare & Medicaid Services (CMS):

Thank you for the opportunity to provide input on the critical topic of technology for Medicare beneficiaries. We applaud your focus on empowering patients and improving health outcomes through the effective and responsible adoption of digital health technology. Building on foundational policies currently in place—specifically Trusted Exchange Framework and Common Agreement (TEFCA), the 21st Century Cures Act, and the CMS Interoperability and Patient Access Final Rule—your efforts in this regard are essential for the future of healthcare and will generate significant dividends for patient care.

Provider Use Cases Are Off to a Great Start

From our perspective, the progress on provider-focused use cases, driven by initiatives like the QHINs under TEFCA, has been remarkable. The wide availability of clinical information for providers at the point of care has improved by orders of magnitude over the last 15 years, representing a monumental advance for care quality and coordination.

While adoption has been fantastic, we know not every provider is connected yet. We recommend CMS transition from encouraging to mandating provider participation in this data-sharing framework as the necessary next step to achieving truly universal data access for care delivery.

For Better Care, Focus on More Data, Not Necessarily More Structured Data

A key consideration for the future is the nature of the data itself. Historically, the push has been toward greater data structuring, such as expanding standards like the United States Core Data for Interoperability (USCDI). However, the landscape is changing rapidly due to advancements in artificial intelligence (AI).

Given the incredible ability of modern AI models to read, summarize, and extract relevant information from text, we believe now it is more important to prioritize making *all* data available—especially unstructured data like physicians' narrative notes. For direct patient care use cases, the value unlocked by having access to a complete record, including the nuanced context in a provider's notes, outweighs the value of having a more limited, but perfectly structured, dataset. AI can bridge the gap.

Payer-Provider and Patient-Facing Use Cases

In contrast to the clear progress in provider data sharing, we view payer-provider use cases as a secondary, though still important, priority. The historical lack of trust between payers and providers, often centered on activities like chart audits, creates significant friction. Rushing to solve these use cases before the provider and patient-care foundation is fully mature could be counterproductive.

However, there is a clear area of alignment where we can make progress: **prior authorization**. We should focus on establishing simpler, trusted ways to exchange the necessary data to automate and streamline that process. It will be a win for everyone—providers, payers, and most importantly, patients.

We encourage the use of interoperability frameworks for HEDIS measure extraction but believe a human validation step will remain necessary for the foreseeable future. Fully autonomous AI is unlikely to be sufficient without final review.

Finally, on the topic of patient facing tools, we strongly support efforts to make it easier for patients to access their full and complete health data, across all settings and sources. While there remains a persistent chicken-and-egg dynamic—where limited utility slows adoption and limited adoption constrains utility—we believe that continued progress in this area is essential. Making patient data more accessible and usable is a foundational step toward achieving a healthcare system that is truly centered around the needs, preferences, and experiences of the patient.

Thank you again for your leadership and for seeking this input. We are optimistic about the direction you are headed and believe that by focusing on universal provider access to all data and facilitating targeted, high-value exchanges, we can build on the great foundation already in place.

We look forward to continued collaboration.

Sincerely,

Senator William "Mo" Cowan (Retired)
Chief Legal and External Affairs Officer
Devoted Health, Inc.